

July 27, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003212 Jefferson Capital Systems, LLC vs. John Ahearn

No appearances required. In light of the judgment filed on July 2, 2026, the OSC re Failure to Request Default is dismissed.

2. CL0003783 Independence Capital Recovery, LLC (ICR) vs. MICHELLE SHELTON

No appearances required. In light of the proof of service of the Summons and Complaint filed on June 2, 2026, the OSC re Dismissal is dismissed. The Court notes, contrary to the declaration of counsel filed on July 20, 2026, the Court has not received a default judgment package filed under separate cover.

3. CL0003831 Midland Credit Management Inc. vs. William Wong

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for October 16, 2026 at 11:00 a.m.

4. CU0001445 James B. House vs. Gregory Atchley et al

Plaintiffs' motion to compel compliance with deposition subpoena for production of business records served on non-party Cory A. Birnberg is granted in part as described herein. Non-party Birnberg is ordered to respond to the subpoena, except requests 5-7 and 9, within 30 days' notice of this ruling. Subpoenaed Party Birnberg's motion to quash service of subpoena is granted in part as described herein, as to requests 5-7 and 9. Both parties' requests for sanctions are denied.

Legal Standards

Motion to Compel Deposition Subpoena

A party seeking discovery from a person who is not a party to the action may obtain discovery by oral deposition, written deposition, or deposition subpoena for production of business records. Code Civ. Proc., § 2020.010. A deposition subpoena may command either: (1) only the attendance and testimony of the deponent, (2) only the production of business records for copying, or (3) the attendance and testimony of the deponent, as well as the production of business records, other documents, electronically stored information, and tangible things. Code Civ. Proc., § 2020.020.

Service of a deposition subpoena shall be effected in such a manner as to allow sufficient time in advance of the deposition to provide the deponent a reasonable opportunity to locate and produce any designated documents and, where personal attendance is commanded, a reasonable time to travel to the place of deposition. Code Civ. Proc., § 2020.220(a). Personal service of any